

Ross on Crime

A

Alibi

Last Review: 23/09/2023

Alibi

Definition	[1.3800]
What is not an alibi	[1.3805]
Defence must give notice	[1.3810]
Failure to give notice within the prescribed period	[1.3815]
Failure to give notice at all	[1.3820]
Notice must give proper particulars	[1.3825]
Materiality of date and place	[1.3830]
Prosecution must negative alibi	[1.3835]
Alibi direction	[1.3837]
False alibi: judge's directions	[1.3840]
Alibi witness not called after notice is given	[1.3845]
Prosecution tender of alibi notice	[1.3850]
At trial	[1.3855]
False alibi as a crime	[1.3860]
(Absence of) Opportunity evidence akin to alibi	[1.3865]

[1.3800] Definition

Alibi comes from the Latin term meaning elsewhere.

When an accused person, in order to show that he could not have committed the offence with which he is charged, sets up as his defence that he was *elsewhere* at the time when the crime is alleged to have taken place, this defence is called an *alibi*.

[1.3805] What is not an alibi

Evidence that the accused was not at the scene is not alibi and no notice is needed.

In *R v Johnson* [1995] 2 Cr App R 1 (CCA) Glidewell LJ giving the judgment of the court said (at 9):

[E]vidence, whether from a defendant himself or from any other person, which goes no further than that the defendant was not present at the place where an offence was committed is not “evidence in support of an alibi” within section 11(8) and thus within the remainder of the section. By the clear words of subsection (8), evidence in support of an alibi has to be evidence that the defendant was at some other particular place, or in some other particular area.

[1.3810] Defence must give notice

By statute the defence must give notice to the prosecution of intent to adduce evidence of alibi, and from whom.

Legislation

Cth: *Evidence Act 1995* s 9(2)(c) (Legislation of State or Territory unaffected);

Qld: Criminal Code s 590A; *Justices Act 1886* s 104(5);

WA: *Criminal Procedure Act 2004* ss 62, 96;

Tas: Criminal Code s 368A;

NT: Criminal Code s 331;

NSW: *Criminal Procedure Act 1986* s 150;

Vic: *Criminal Procedure Act 2009* ss 51, 190;

SA: *Criminal Law Consolidation Act 1935*; *Summary Procedure Act 1921* s 105(5);

ACT: *Crimes Act 1900* s 288;

Eng: *Criminal Procedure and Investigations Act 1996* s 5(7).

[1.3815] Failure to give notice within the prescribed period

The mere fact that the necessary information was not given within the prescribed period does not by itself as a general rule justify the court in exercising its discretion by refusing permission for the evidence to be called: *R v Sullivan* [1971] 1 QB 253 at 258; [1970] 2 All ER 681 at 684; 54 Cr App R 389 at 394.

[1.3820] Failure to give notice at all

In *R v Cooper* (1979) 69 Cr App R 229 at 233 the court said that in such a case a judge should take the course of “giving leave for the evidence to be called subject to the service of the notice out of time and ... allowing the prosecution such adjournment ... to enable them to investigate the alibi and the alibi witnesses”.

[1.3825] Notice must give proper particulars

The notice must give proper particulars to be effective: *R v Sorby* [1986] VR 753; (1986) 21 A Crim R 64 at 770–772, 82–84 (CCA).

In *R v Beljaev* (2006) 14 VR 241; 166 A Crim R 557 (Coldrey J) the defence gave a notice of alibi listing prosecution witnesses. His Honour held that the notice was misconceived and of no effect. His Honour said (247; 563 [39]):

[T]he proposition that an accused need give notice before cross-examining a designated Crown Witness as to a possible alibi flies in the face of the adversary system.

[1.3830] Materiality of date and place

The legislation only applies to evidence as to the whereabouts of the accused when the crime is alleged to have been committed and not some other event in dispute: *R v Lewis* [1969] 2 QB 1. It only relates to an offence alleged to have been committed at a particular place: *R v Hassan* [1970] 1 QB 423; [1930] 1 All ER 745; 54 Cr App R 56.

If an alibi on that particular date is set up in defence, it is a misdirection for the presiding judge to inform a jury that they may accept the alibi and yet convict. The proper direction

to the jury is that they cannot convict unless they reject the alibi as being false or mistaken: *R v Dean* (1932) 51 NZLR 753 at 763.

Followed:

R v Jacobs [1993] 2 Qd R 541 at 549 (CCA).

The prosecution must not withdraw and recast the dates after an accused sets up an alibi for the dates of the crime first charged: *R v H* (1995) 83 A Crim R 402 (SA CCA).

[1.3835] Prosecution must negative alibi

When evidence of an alibi is raised, the prosecution must negative the alibi for the accused to be convicted. In *Killick v The Queen* (1981) 147 CLR 565; 37 ALR 407 Gibbs CJ, Murphy and Aickin JJ said (at 569–570; 409):

Although an alibi is not uncommonly referred to as a defence, no onus of proving an alibi rests on the accused; the prosecution must negative an alibi if one is put forward, as it must negative a claim that the accused acted in self-defence or as a result of provocation: see *R v Johnson* (1961) 46 Cr App R 55; *R v Taylor* [1968] NZLR 981 at 985–6.

In *R v Small* (1994) 33 NSWLR 575; 72 A Crim R 462 (CCA) Hunt CJ at CL said (at 595–596; 481):

[B]y raising an alibi, the accused was not undertaking to prove anything, and that the onus remained on the Crown to remove any reasonable doubt which may have been created by the alibi claim. In other words, the Crown had to eliminate any reasonable possibility that the alibi was true.

See also

R v J (No 2) [1998] 3 VR 602 at 629–630 (CA).

[1.3837] Alibi direction

When an alibi is advanced, the judge should normally give a direction along the lines that they should acquit the accused if they accept the alibi, although there is no exact form of wording that is required: *Jubraeel v The Queen* [2015] NSWCCA 131. However, there is no requirement that this direction must be given in every case: *Dun v The Queen* [2019] VSCA 43.

[1.3840] False alibi: judge's directions

A judge should give careful directions on an alibi which may be rejected.

In *R v Turnbull* [1977] 1 QB 224; [1976] 3 All ER 549; (1976) 63 Cr App R 132 (CA) a five member court said (at 230; 553; 139):

Care should be taken by the judge when directing the jury about the support for an identification which may be derived from the fact that they have rejected an alibi. False alibis may be put forward for many reasons: an accused, for example, who has only his own truthful evidence to rely on may stupidly fabricate an alibi and get lying witnesses to support it out of fear that his own evidence will not be enough. Further, alibi witnesses can make genuine mistakes about dates and occasions like any other witnesses can. It is only when the jury is satisfied that the sole reason for the fabrication was to deceive them and there is no other explanation for its being put forward can fabrication provide any support for identification evidence. The jury should be reminded that proving the accused has told lies about where he was at the material time does not by itself prove that he was where the identifying witness says he was.

Approved:

King v The Queen (1986) 15 FCR 427; 161 CLR 423; 22 A Crim R 153; 68 ALR 27 in a joint judgment (at 438; 38; 163–164).

R v Juric (2002) 4 VR 411; 129 A Crim R 408 at 436; 432–433 [39]–[40] (CA).

A false alibi direction is not always necessary or appropriate: *Chaouk v The Queen* [2022] VSCA 151.

See also

Edwards v The Queen (1993) 178 CLR 193; 68 A Crim R 349; 117 ALR 600.

Lies at [12.1500]ff.

[1.3845] Alibi witness not called after notice is given

A judge may direct the jury that the witness would not have helped the defence: *R v Rose* (1993) 69 A Crim R 1 (SA CCA).

See also

R v Rossborough (1985) 81 Cr App R 139.

[1.3850] Prosecution tender of alibi notice

In *R v Heuston* (1996) 90 A Crim R 213 (NSW CCA) Gleeson CJ said (at 217):

The action of the Crown Prosecutor in tendering the notices of alibi as part of the Crown case in chief was neither unusual nor irregular: see *Rossborough* (1985) 81 Cr App R 139; *Fields* [1991] Crim LR 38. As was observed in argument on this appeal, if the crown were to tender a notice of alibi only in reply, that could prevent an accused person who did not seek to rely upon the alibi, or who gave a different alibi, from giving an explanation of what had occurred. It will be the case that the Crown will not know what course an accused proposes to take in relation to an alibi, and there is usually no way of binding the accused to any particular course before the Crown case is closed. The trial judge was right to conclude that, in the circumstances of this case, the tender of the notices was not unfair to the accused.

But in *R v Keane* (unreported, Vic CCA, 29 June 1978) Young CJ said (at p 5):

During the argument there was some discussion of the right of the Crown to tender a notice of alibi given pursuant to s 399A of the *Crimes Act 1958*. It may be necessary to examine that question in detail on some occasion but in the present case all that I think it is necessary to say is that the admissibility of such a document must be decided in any case in accordance with general principles. It will not generally be possible to tender it as part of the Crown case but it may be possible to use it to challenge the credit of an accused who gives evidence.

In *R v Hines (No 2)* [1998] 3 NZLR 261 (CA) Gault J giving the judgment of the court said (at 263):

The Canadian cases draw a distinction between evidence of guilt and evidence of consciousness of guilt and recognise evidence of alibi fabrication as going to the latter: *R v Babinski* (1991) 67 CCC (3d) 187 (Ont: CA), *R v Davison* (1974) 20 CCC (2d) 424 (Ont: CA), *R v Witter* (1996) 105 CCC (3d) 44 (Ont: CA), *R v Tyson* (Court of Appeal, Wellington, CA 202/90, 13 December 1990), *R v Carey* (1996) 113 CCC (3d) 74. Those cases also draw the distinction between alibi evidence which is not accepted – which is to be set aside as not affirmative evidence of anything on the one hand, and evidence of consciousness of guilt which is no different from any other circumstantial evidence and can support an inference of guilt on the other hand.

Further (at 264):

The position is really similar to that which prevails in those rare cases in which the Crown can put forward a lie by an accused which because of its nature and the circumstances may

be regarded as adding to the Crown case; see *R v Toia* [1982] 1 NZLR 555 at p 559. The fabrication of an alibi with its obvious purpose of perverting the course of justice may be seen as providing even stronger support to the Crown case than many other lies which can be classed as consistent more with guilt than innocence.

See also

R v Watts (1980) 71 Cr App R 136 at 141 (CCA).

Archbold (1998) says (at 4–319):

Generally, to make a defendant responsible for his solicitor's letters they must be shown to have been written in pursuance of specific instructions from the client and not merely in consequence of interviews with, or of general instructions from, him: see *R v Downer* (1880) 14 Cox 486.

[1.3855] At trial

It was once said that:

The accused can be cross-examined as to his failure to notify an alibi within the time prescribed and the failure can be the subject of comment.

The cases in which that proposition was put are *R v Lattouf and Carr* (1980) 2 A Crim R 65 at 73–74 (NSW CCA) and *R v Vincec* (1990) 50 A Crim R 203 at 208–210 (Vic CCA).

They should not be followed. *Petty v The Queen* (1991) 173 CLR 95; 102 ALR 129; 55 A Crim R 322 is now the authority. (See **Silence** at [19.3900].)

Once evidence of an alibi is given and the prosecution is on notice, it cannot re-open its case to rebut the alibi: *Killick v The Queen* (1981) 147 CLR 565; 37 ALR 407.

In *R v McLeod* [1994] 1 WLR 1500; [1994] 3 All ER 254; [1995] 1 Cr App R 591 (CA) the court held that an accused who gives alibi evidence can be cross-examined about an alibi in an earlier case which the jury rejected.

[1.3860] False alibi as a crime

In *DPP v Hurnam* [2007] 1 WLR 1582 (PC) a barrister was charged and convicted of conspiracy to do an unlawful act. That act was conspiring with his client to hinder police enquiries into an

offence by fabricating an alibi. It happened in Mauritius. The intermediate appeal court quashed the conviction. The prosecution appealed. The Board restored the conviction.

[1.3865] (Absence of) Opportunity evidence akin to alibi

In *Pell v The Queen* (2020) 268 CLR 123; 94 ALJR 394; [2020] HCA 12, the High Court allowed an appeal from a decision of the Court of Appeal of the Supreme Court of Victoria and quashed the convictions against Cardinal George Pell relating to two complainants of one charge of sexual penetration of a child under 16 years and four charges of committing an act of indecency with or in the presence of a child under the age of 16 years. The complainants were choirboys, both aged 13 years at the time that the offences were alleged to have occurred.

The offences were alleged to have been committed on two separate occasions (December 1996 and 23 February 1997) but in a similar manner. It was alleged that the offences were committed at St Patrick's Cathedral in East Melbourne in and near the priests' sacristy, following the Sunday Mass. One of the complainants had passed away before the trial. The appellant argued before the Court of Appeal that his convictions should be quashed on the grounds they were unreasonable or could not be supported by the evidence. This submission was rejected by the majority of the Court. Ferguson CJ and Maxwell P stated that the complaint was a credible witness. They also considered evidence from a number of "opportunity witnesses", who set out practices after Sunday Mass which inclined against the appellant having the opportunity to commit the offences. Weinberg JA dissented, and held that in light of the uncontradicted opportunity evidence a rational jury should have a reasonable doubt about the appellant's guilt.

The Full Bench of the High Court unanimously allowed the appeal. The Court noted that opportunity witnesses described three practices which made it less likely that the offences occurred. The High Court noted at [118]:

It remains that the evidence of witnesses, whose honesty was not in question, (i) placed the applicant on the steps of the Cathedral for at least ten minutes after Mass on 15 and 22 December 1996; (ii) placed him in the company of Portelli when he returned to the priests' sacristy to remove his vestments; and (iii) described continuous traffic into and out of the priests' sacristy for ten to 15 minutes after the altar servers completed their bows to the crucifix.

The Court stated at [119]:

Upon the assumption that the jury assessed A's evidence as thoroughly credible and reliable, the issue for the Court of Appeal was whether the compounding improbabilities caused by the unchallenged evidence summarised in (i), (ii) and (iii) above nonetheless required the jury, acting rationally, to have entertained a doubt as to the applicant's guilt. Plainly they

did. Making full allowance for the advantages enjoyed by the jury, there is a significant possibility in relation to charges one to four that an innocent person has been convicted.

The fifth count was overturned for similar reasons.

A notable aspect of the High Court's reasoning is outlined at [93]:

Evidence of a person's habit or practice of acting in a particular way to establish that the person acted in that way on a specific occasion may have considerable probative value. As Professor Wigmore explained, “[e]very day's experience and reasoning make it clear enough” [38]. The evidence of religious ritual and practice in this case had particular probative value for the reason that their Honours first identified: adherence to ritual and compliance with established liturgical practice is a defining feature of religious observance. Contrary to the Court of Appeal majority's analysis, the absence of any “significant and unusual event” associated with solemn Mass on 15 and 22 December 1996 tells against the likelihood of Portelli having departed from his duties as master of ceremonies.

Thus, the Court in reaching its decision did not expressly evaluate the persuasiveness of the complainant's evidence. Rather it assumed it was credible and reliable and then weighed this against conflicting evidence in the form of a course of well-established conduct and found that evidence of routine practices can have sufficient probative value to prevent direct evidence of a crime reaching the beyond reasonable doubt evidentiary level. Evidence of a lack of opportunity to commit a crime based on past practices is akin to alibi evidence given that if it is credible, logically it can refute evidence that the accused could have been in a position to commit the crime in question.

For an application of *Pell v The Queen* (2020) 268 CLR 123; 94 ALJR 394; 376 ALR 478; [2020] HCA 12, see *Arbogast v The Queen* [2022] VSCA 143.